

23STCV18147 23STCV18147

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 23STCV18147 Hearing Date: August 4, 2026 Dept: 732

Fermina Chavez v. General Motors, LLC, et al.

Tuesday, August 4, 2026

CASE NUMBER: 23STCV18147

OPPOSED

Plaintiff Fermina

Chavez's Motion for Attorney Fees

Facts:

This is a lemon law action. The Complaint alleges as follows. Plaintiff Fermina Chavez (Plaintiff) in June 2023 purchased a 2023 Cadillac Lyriq with express warranties. (Complaint ¶ 7.) The vehicle contained or developed various defects. (Complaint ¶ 8.)

Procedural History: Plaintiff filed the

Complaint on August 1, 2023, alleging three causes of action:

1.

Breach of Express Warranty

2.

Breach of Implied Warranty

3.

Civ. Code § 1793.2, subd. (b)

This court on March 25, 2024, this court granted in part Plaintiff's motions to compel further responses to requests for production and interrogatories from Defendant.

Plaintiff filed a notice of settlement on October 15, 2025.

Plaintiff filed the present motion for attorney fees on May 4, 2026.

Defendant filed an opposition on May 21, 2026.

Plaintiff filed a reply on May 28, 2026.

Analysis:

I.

MOTION FOR ATTORNEY FEES

Parties to litigation must generally bear their own attorney's fees, unless they otherwise agree. (Code Civ. Proc. § 1021.) However, the Song-Beverly Act provides for the award of attorneys' fees to prevailing plaintiffs as follows:

If

the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

(Civ. Code § 1794, subd. (d).)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of

discretion.” (Melnik v. Robledo (1976) 64 Cal.App.3d 618, 623.) In exercising its discretion, the court should consider a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (See id.)

In determining the proper amount of fees to award, courts use the lodestar method. The lodestar figure is calculated by multiplying the total number of reasonable hours expended by the reasonable hourly rate. “Fundamental to its determination . . . [is] a careful compilation of the time spent and reasonable hourly compensation of each attorney . . . in the presentation of the case.” (Serrano v. Priest (1977) 20 Cal.3d 25, 48 (Serrano III).) A reasonable hourly rate must reflect the skill and experience of the attorney. (Id. at p. 49.) “Prevailing parties are compensated for hours reasonably spent on fee-related issues. A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Serrano v. Unruh (1982) 32 Cal.3d 621, 635 (Serrano IV).) The Court in Serrano IV also stated that fees associated with preparing the motion to recover attorneys’ fees are recoverable. (See id. at p. 624.)

Plaintiff Fermina Chavez (“Plaintiff”) seeks \$45,020.34 in attorney fees and costs, representing a lodestar fee award of \$35,685.00, plus \$3,267.64 in costs and expenses, plus a 1.2x multiplier. (Motion at pp. 9–10.) The requested fee lodestar is based on 73.8 hours of attorney work at rates ranging from \$375 per hour to \$575 per hour, with a mean hourly rate of \$483.54. (Mizrahi Decl. Exh. B.)

As an initial matter, no lodestar multiplier is appropriate in this case. “Once the court has fixed the lodestar, it may increase or decrease that amount by applying a positive or negative ‘multiplier’ to take into account a variety of other factors, including the quality of the representation, the novelty and complexity of the issues, the results obtained, and the contingent risk presented.” (Thayer v. Wells Fargo Bank., N.A. (2001) 92 Cal.App.4th 819, 833.) The court’s file and the billings submitted in support of the motion demonstrate that this lemon law case, which did not proceed to trial, was not particularly novel or complex.

Defendant General Motors, LLC ("Defendant") opposes the motion by reference to several charges in the billing records that it identifies as excessive and unreasonable. (Opposition at pp. 4–7.) Much of these objections are directed to the template-based nature of much of this lemon law litigation. But the fees charged for a number of matters, including drafting the complaint, preparing and responding to discovery, and preparing and defending the present motion for fees, already appear to account for the templates used, and require no reduction. Certain other objections, such as that Plaintiff ought not to be able to claim fees for client-onboarding or post-settlement arrangement of the surrender of the subject vehicle, are not supported by authority. And Defendant's contention that Plaintiff billed 5.6 hours to respond to discovery only with boilerplate objections is not borne out by the responses that Defendant presents to the court. (Opposition at pp. 5–6; Gruszecki Decl. Exh. G.)

Certain charges do appear to warrant reduction, however. Plaintiff claims 11.1 hours and \$4,162.50 in connection with two template motions to compel further which were granted in part on March 25, 2024. (Mizrahi Decl. Exh. B.) Reducing this charge to a more reasonable eight ours yields a reduction in the lodestar of \$1,162.50.

Additionally, Plaintiff seeks a substantial amount of time associated with motions to compel compliance with deposition subpoenas directed to third-parties. While this time is reasonably compensable, substantial time — 3.7 hours and \$1,387.50 in block-billed entries — are billed for "research" into the subpoena process. (Mizrahi Decl. Exh. B, 4/16/2025, 4/18/2025.) Given the routine nature of this case and the discovery at issue, this amount too is properly reduced from the lodestar.

Accordingly, the lodestar is reduced by \$2,550.00, from \$35,685.00 to \$33,135.00.

Defendant also objects to various cost items. Many of these items, such as filing fees and jury fees, are facially compensable under Code of Civil Procedure § 1033.5. However, Plaintiff's request for \$1,077.33 in costs for courtesy copies is not reasonably included. While such costs may be compensable where reasonably necessary to the litigation, the costs here are neither dated nor labeled according to what matter they correspond, and do not appear to be "reasonably necessary for the conduct of the litigation." (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 77.) Thus the cost award is properly reduced by \$1,077.93.

The motion for attorney fees is thus GRANTED for fees in the amount of \$33,135.00 and for costs in the amount of \$2,189.41.

Superior Court of California

County of Los Angeles

Department 732

FERMINA CHAVEZ,

Plaintiff,

v.

GENERAL MOTORS, LLC., et al.

Defendant(s).

Case No.:

23STCV18147

Hearing Date: August 4, 2026

[TENTATIVE] RULING RE:

Plaintiff Fermina

Chavez's Motion for Attorney Fees

Plaintiff Fermina Chavez's Motion for Attorney Fees is GRANTED for fees in the amount of \$33,135.00 and for costs in the amount of \$2,189.41.

Plaintiff to provide Notice.

Dated: August 4, 2026

Hon.

Richard S. Kemalyan

Judge
of the Superior Court